

Raheel Bahadur and four others      **Vs.**      Province of Punjab, through Secretary Environment, Punjab Secretariat, Lahore and six others.

11.11.2020 Malik Ghulam Mustafa Kandwal, Advocate for the appellants.

2. The brief facts, necessary for the disposal of the instant appeal, are that the appellants are engaged in the business of running brick kilns within the District Rawalpindi. That the Relief Commissioner, Government of Punjab, in exercise of the powers vested under section 4 (2)(h) of the Punjab National Calamities (Prevention and Relief Act, 1958) vide order dated 15<sup>th</sup> October, 2020 ordered that all the brick kilns built on old methodology shall not be allowed to operate with effect from 7<sup>th</sup> November, 2020 to 31<sup>st</sup> December, 2020 in accordance with the order dated 17.09.2020 passed by this Court in Writ Petition No. 227807/2018. It was further ordered by the Relief Commissioner, Punjab that all the brick kilns which have been converted to zigzag methodology shall be allowed to operate as per the

Standard Operating Procedures devised by the Environment Protection Department, Government of the Punjab. The appellants challenged the order dated 15th October, 2020 passed by the Relief Commissioner, Government of Punjab through Writ Petition No. 2644 of 2020 which petition was dismissed by the learned Single Judge in Chambers, hence this appeal.

3. The learned counsel for the appellants submitted that the Relief Commissioner, Government of Punjab, had no authority to pass the order dated 15th October, 2020 whereby he had ordered that all the brick kilns built on old methodology shall not be allowed to operate with effect from 7<sup>th</sup> November, 2020 to 31<sup>st</sup> December, 2020 in accordance with the order dated 17.09.2020 passed by this Court in Writ Petition No. 227807/2018. Learned counsel for the appellants further submitted that as the brick kilns being operated by the appellants were located in the Green Zone, therefore, they should be allowed to operate despite the fact that the said brick kilns are built on old methodology and not on the zigzag methodology.

4. We have heard the learned counsel for the appellants and perused the record.

5. The learned counsel for the appellants has been unable to point out any illegality or excess of jurisdiction having been committed by the learned Single Judge in Chambers while passing the impugned order dated 03.11.2020. We find that the impugned order dated 03.11.2020 has been passed by the learned Single Judge in Chambers after going through the record of the case and taking into consideration the facts and circumstances of the case. The Punjab Cabinet, in its 36th meeting, declared **smog** a calamity under Section 3 of The Punjab National Calamities (Prevention &

Relief), Act 1958, which has been notified vide Notification No. Smog-2020/10/Coord-1 dated 14.10.2020. After the said notification, the Relief Commissioner, Government of Punjab, in exercise of the powers vested under section 4 (2)(h) of the Punjab National Calamities (Prevention and Relief Act, 1958) vide order dated 15<sup>th</sup> October, 2020 ordered that all the brick kilns built on old methodology shall not be allowed to operate with effect from 7<sup>th</sup> November, 2020 to 31<sup>st</sup> December, 2020 in accordance with the order dated 17.09.2020 passed by this Court in Writ Petition No. 227807/2018. The Relief Commissioner, Government of Punjab further noted in his order dated 15<sup>th</sup> October 2020 that there was recorded evidence of persistent deterioration in the Air Quality Index of the city of Lahore in particular and the province of Punjab in general, from satisfactory level to moderately and poorly polluted levels, which was likely to cause breathing discomfort, respiratory tract diseases, including asthma, besides heart related ailments amongst children and older adults specifically and the people of all age in general. It added that there was a continuous trend of new COVID-19 patients throughout the province and overlap of conducive conditions for respiratory tract diseases due to *smog* could exacerbate the casualty rate. The Relief Commissioner further noted in his order that it was mandatory to take all possible measures to contain and arrest the rapid deterioration of ambient Air Quality Index in territorial limits of the province and hence there were sufficient grounds to proceed under Section 4 (2) (h) of The Punjab National Calamities (Prevention & Relief) Act 1958, as an immediate preventive and speedy remedy to ensure public safety in the province of Punjab. The order passed by the Relief Commissioner Punjab was directed to

remain in force in the entire province of Punjab with effect from 15th October, 2020 till further orders and no discrimination in this sense has been made. It was further ordered by the Relief Commissioner, Punjab that all the brick kilns which have been converted to the zigzag methodology shall be allowed to operate as per the Standard Operating Procedures devised by the Environment Protection Department, Government of the Punjab. It is admitted by the learned counsel for the appellants that the brick kilns being operated by the appellants are built on old methodology and have not been converted to the zigzag methodology. Traditional brick production in Pakistan consists of hand-made bricks which are baked in Fixed Chimney Bull's Trench Kilns (FCBTK), the most widely used brick firing technology in South Asia. This is one of the most contaminating techniques for brick production, resulting in a host of social and environmental impacts including air pollution, climate change, cardio-respiratory diseases, land use impacts and deforestation. The different kiln type and fuels burned, make it difficult to accurately identify the make-up of air pollutants emitted by the sector, but they include sulfur oxides, nitrogen dioxide, carbon monoxide, carbon dioxide (CO<sub>2</sub>), forms of particulate matter (PM) including black carbon, and additional compounds released by burning coal and other fuels. Brick kilns are recognized as one of the largest stationary sources of black carbon. Black carbon (a major component of soot) is produced by the incomplete combustion of fossil fuel and biomass. It has a warming impact on climate 460 to 1500 times stronger than CO<sub>2</sub>. Its lifetime in the atmosphere varies from a few days to a few weeks. Pakistan is a focus country for the project “*Mitigating Black Carbon Emissions and Other Pollutants from Brick Production*”, which

promotes and creates enabling environments that lead to substantial reductions of black carbon and other pollutants from brick kilns and aims to transform the sector into a healthier, socially responsible, more profitable industry. The Environment Protection Department, Punjab (EPD, Punjab) and the National Energy Efficient Conversation Authority (NEECA) is working closely with the *All Bricks Kiln Owners Association of Pakistan* to introduce environmentally friendly and cost-effective brick kiln technology. This is being facilitated by the International Centre for Integrated Mountain Development (ICIMOD). Pakistan is working with the Climate and Clean Air Coalition (CCAC) and ICIMOD to train brick entrepreneurs and raise awareness of new increasingly cost effective and scalable kiln technologies and improvements in the brick production process. The real difference between the traditional Fixed Chimney Bulls Trench Kiln (FCBTK) and the zig-zag technology driven brick kiln is that in the former the placement of bricks is done in a straight pattern, whereas in the latter the bricks are placed in a zig-zag pattern. The zig-zag pattern allows to efficiently maneuver the air for heating purposes. Furthermore, the black soot that comes out of the traditional brick kiln is due to inefficient burning of fuel, whereas, the zig-zag setting of bricks and continuous feeding of small quantities of coal improves fuel efficiency. As a result, the emitted smoke from the kilns employing zig-zag technology is white coloured and with significantly low air pollution levels. The Induced-Draught zig-zag kiln type also has a fan, which allows to control the air, thereby making the coal burning process even more efficient. Natural Draught Zigzag firing kiln is a moving fire kiln in which the fire moves in a closed rectangular circuit through the bricks stacked

in the annular space between the outer and the inner wall of the kiln. The bricks are stacked in such a manner to guide the air flowing a zigzag path. Zigzag flow increases the air flow path length and turbulence in the air, thereby resulting in improved combustion & heat transfer rate and uniform temperature across the kiln cross section. Also the long firing zone and fuel feeding practice improves the combustion efficiency of the kiln. The main innovation in natural draught zigzag kiln is that while traditionally zigzag firing was done with the assistance of fan draught, in this kiln the zigzag operation is achieved through the chimney draught. One of the main advantages of a Zigzag kiln is its lower specific energy consumption (SEC) as compared to that of FCBTK. The Zigzag kilns have SECs in the range of 0.95–1.20 MJ/kg fired brick. On an average, in comparison to conventional FCBTK, Zigzag kilns require about 20% less energy. The concentration of SPM emissions in Zigzag kilns during monitoring ranged from 30 to 260 mg/Nm<sup>3</sup>. Apart from SPM emissions, a Zigzag kiln emits 20% less CO<sub>2</sub> emissions and 75% less BC emissions as compared to those of an FCBTK significant advantage of using a Zigzag kiln is the production of a higher percentage (80%–90%) of class-I bricks as compared to that of FCBTK (50%–60%). There is also a strong business case for converting to zig-zag technology. It reduces coal consumption by 20 per cent and carbon emissions by 40-60pc.

6. With regard to the contention of the learned counsel for the appellants that due to the said order dated 15.10.2020 passed by the Relief Commissioner, Punjab the appellants have suffered loss of business and

livelihood, it is observed that the Punjab National Calamities (Prevention and Relief) Act, 1958 itself provides a mechanism of compensation if any order is passed under section 4 of the said act. The proviso to the section 4 of the Punjab National Calamities (Prevention and Relief) Act, 1958 provides as under:-

*“Provided that with respect to the powers conferred by clauses (b), (c),(d),(e),(f),(g),(h) and (i), of this sub-section the person owning the articles, beasts of burden, building or land which is requisitioned or acquired, or the building or other structure which is demolished, or the person directed to abstain from any act or to take any order with regard to any property, and the persons conscripted to work as labourers **shall be entitled to reasonable compensation** as may be claimable under any law for the time being in force, or if no such law exists as is applicable to the case, then as prescribed by rules under this Act, and such compensation shall be paid within one year from the day it falls due.”*

7. Another aspect of the case is whether the instant Intra Court Appeal is maintainable. In order to address the afore-referred proposition of law, for facility of reference, it would be appropriate to reproduce section 3 of Law Reforms Ordinance, 1972:--

*"3. Appeal to High Courts in certain cases:*

*1. An appeal shall lie to a Bench of two or more Judges of a High Court from a decree passed or final order made by a single Judge of that Court in the exercise of its original civil jurisdiction.*

*2. An appeal shall also lie to a Bench of two or more Judges of a High Court from an order made by a Single Judge of that Court under [clause (1) of Article 199 of the Constitution of the Islamic Republic of Pakistan] not being an Order made under sub-paragraph (i) of paragraph (b) of that clause:*

*Provided that the appeal referred to in this subsection shall not be available or competent if the application brought before the High Court under Article 199 **arises out of any proceedings in which the law applicable provided for at***

***least one appeal or one revision or one review to any Court, Tribunal or authority against the original order.***

*3. No appeal shall lie under subsection (1) or subsection (2) from an interlocutory order or an order which does not dispose of the entire case before the Court."*

In respect of words "original order" and "proceedings" contemplated under the Law Reforms Ordinance, 1972 with reference to the maintainability of Intra Court Appeal, it has been settled in case of "Mst. Karim Bibi and others v. Hussain Bakhsh and another" (**PLD 1984 Supreme Court 344**) that word 'proceeding' would include every step taken towards further progress by which the machinery of law is put to motion and original order may be the order passed by the lowest officer or authority in the hierarchy. Therefore, the test is that as to whether the original order passed in proceedings is subject to an appeal or a revision under the relevant law, irrespective of fact whether the remedy of appeal or revision so provided was availed or not. The section 8 of the Punjab National Calamities (Prevention and Relief) Act, 1958 itself provides that a revision shall lie against the order of the Relief Commissioner, Punjab passed under section 4 of the said Act. Section 8 of the Punjab National Calamities (Prevention and Relief) Act, 1958 reads as under:-

***"8. Revision.— (1) Any order passed under this Act by the Relief Commissioner, shall be subject to revision by the Government, and the Relief Commissioner shall give effect to the orders of the Government made in revision.***

*Provided that no order in revision shall be passed without giving to the party to be affected thereby an opportunity of being heard.*

*(2) The Government shall, by rules, prescribe the class of cases and the manner in which and the time within which orders made under this Act shall be liable to revision by the Government."*

As a revision is provided against the orders passed by the Relief Commissioner, Punjab, therefore, no Intra



Court Appeal can be filed under section 3 of Law Reforms Ordinance, 1972.

8. In view of the above discussion, this appeal being devoid of merit, is **dismissed in limine**.

**(Raja Shahid Mehmood Abbasi ) (Sadiq Mahmud Khurram)**  
**JUDGE JUDGE**

Raheel

*Approved for Reporting*

*Judge.*